



Client Services Agreement

This Agreement is entered into between Vandervan Systems ("Vandervan," "we," "us"), a sole proprietorship operating in British Columbia, Canada, and the party engaging Vandervan for services ("Client," "you"), effective as of the date set out in the applicable Statement of Work or written quote (the "SOW").

We wrote this Agreement to be clear and fair to both sides. It sets out what you can expect from us, what we ask of you in return, and how we handle the less exciting but important details like payment, ownership, and what happens if something goes wrong. If anything here is unclear, ask us before signing. We would rather explain a clause than have you sign something you are unsure about.

1. Scope of Services

Vandervan will provide the services described in the applicable SOW, which may include:

- Website design, development, and deployment
- Workflow automation and integration services
- Ongoing maintenance, hosting support, and technical updates, where included in the SOW

The SOW is the source of truth for what is included in a given project. Any work outside it is a change request under Section 5 and is quoted and billed separately, so neither side is caught off guard later.

2. Communication and Support

You will have a direct point of contact at Vandervan for the duration of your engagement. We aim to respond to routine emails and messages within two business days, and will flag it proactively if a request will take longer. If your project includes an ongoing subscription, support requests submitted through the agreed channel are addressed in the order received, with urgent site-down issues prioritized ahead of cosmetic requests.

3. Client Responsibilities

A project moves as fast as the information we receive. To keep things on schedule, Client agrees to:

- Provide content, feedback, and approvals within a reasonable time of being requested
- Supply any account access, credentials, or third-party logins needed to complete the work
- Designate one point of contact authorized to approve work and change requests, unless otherwise agreed

Delays caused by Client in providing the above do not constitute a breach by Vandervan and may extend the project timeline accordingly.

4. Fees and Payment

- Fees are as stated in the SOW or written quote provided to Client.
- A deposit may be required before work begins. The project will not commence until the deposit is received.
- Remaining balances are due upon completion of the agreed milestone, or per the payment schedule in the SOW.
- Invoices unpaid after 15 days are considered overdue. Vandervan may suspend work, hosting, or site access until payment is received, and will give Client written notice before doing so.
- Recurring maintenance or subscription fees are billed monthly in advance and continue until cancelled with 30 days written notice.

- Any fee increase to a recurring subscription requires at least 90 days written notice to Client before it takes effect.

5. Revisions and Change Requests

The SOW includes a defined number of revision rounds, where applicable. Additional revisions, scope changes, or new features requested after work has begun will be quoted separately and require written approval from Client before Vanderven proceeds. This protects both sides from misunderstandings about what a quoted price includes.

6. Intellectual Property

- Upon receipt of full and final payment, ownership of the final deliverables (website files, custom code, and content created specifically for Client) transfers to Client.
- Vanderven retains ownership of, and Client is granted a non-exclusive, perpetual license to use, any pre-existing tools, templates, frameworks, or reusable components used in delivering the work.
- Vanderven may reference completed work in its portfolio and marketing materials unless Client requests otherwise in writing.
- Third-party assets (stock photography, fonts, plugins, platforms) remain subject to their own licenses and are not owned by either party.
- Vanderven represents that, to the best of its knowledge, original work it creates for Client does not knowingly infringe a third party's intellectual property rights.

7. Confidentiality and Data Handling

Vanderven will keep confidential any non-public business, financial, or personal information Client shares in the course of this engagement, and will use it solely to deliver the contracted services. It is never sold, rented, or used for any purpose outside the scope of the engagement. This obligation survives termination of this Agreement.

What This Covers

This includes business information (branding, pricing, internal processes), login credentials or admin access to Client platforms, financial information needed for invoicing, information submitted through web forms built or managed as part of the engagement, correspondence exchanged by email, and any customer or staff data Client provides for the purpose of building the contracted system, including sensitive categories such as staff hours, wage, or compensation data where the project scope requires it.

How It Is Protected

- Access to Client information is limited to Vanderven Systems personnel who need it to deliver the contracted work, and any subcontractor engaged is bound by confidentiality obligations at least as protective as this section before receiving access.
- Credentials and sensitive files are stored using standard password management and access-control practices, not shared informally or stored in plain text.
- Email is treated as a working communication channel, not a storage system: sensitive files or credentials received by email are moved to secure storage rather than left in an inbox or forwarded onward unnecessarily.
- Where a project involves payroll, wage, or other compensation-related data, access is restricted to what is strictly needed, this data is not exported or stored outside the systems used to deliver the project, and test or demo environments use placeholder data wherever practical.

Third-Party Service Providers

Depending on the project, Vanderven may use third-party platforms to build and operate deliverables (for example, hosting and deployment, form handling, or workflow automation providers). These providers process data solely to operate the functionality Client has requested, under their own respective privacy and security terms, and may be based outside Canada as part of standard service delivery.

Data Breach Notification

If a data breach affecting Client information occurs, Vanderven will notify Client without undue delay after becoming aware of it, describe the nature of the incident and the information involved, and cooperate with Client on any notification obligations Client may have to its own staff or customers.

Retention, Deletion, and Client Rights

Vanderven will retain Client data, credentials, and files only as long as needed to support the delivered system or meet legal, accounting, or contractual obligations. Client may, at any time, request a summary of what information Vanderven holds, correction of inaccurate information, or deletion of information no longer needed to deliver the service, and Vanderven will comply within 30 days of the request.

8. Warranties and Disclaimers

- Services are provided on an "as is" basis. Vanderven does not guarantee specific business outcomes, search engine rankings, traffic, conversion rates, or uptime beyond what is committed in the SOW.
- Vanderven is not responsible for changes made by third-party platforms (hosting providers, CMS platforms, APIs, or integrated services) that affect functionality after delivery.
- Client is responsible for reviewing and approving all deliverables before they go live, and for maintaining its own backups of content it provides.

9. Indemnification

Client agrees to indemnify and hold Vanderven harmless from any claims, damages, or expenses arising from content Client provides, Client's misuse of the delivered work, or Client's violation of applicable law. Vanderven agrees to indemnify Client from claims arising directly from Vanderven's gross negligence or willful misconduct in delivering the contracted services, subject to the limitation of liability in Section 11.

10. Insurance

Vanderven maintains commercially reasonable insurance appropriate to the scope of services provided and will share proof of coverage upon Client's reasonable request.

11. Limitation of Liability

To the maximum extent permitted by law, Vanderven's total liability arising out of this Agreement is limited to the total fees paid by Client under the applicable SOW in the preceding 3 months. Vanderven is not liable for indirect, incidental, special, or consequential damages, including lost profits or lost data, even if advised of the possibility of such damages. Nothing in this Agreement limits liability that cannot be limited under applicable law.

12. Force Majeure

Neither party is liable for delay or failure to perform caused by events beyond its reasonable control, including natural disasters, internet or utility outages, third-party platform failures, or government action. The affected party will notify the other as soon as reasonably possible and both parties will work in good faith to resume performance.

13. Termination

- Either party may terminate this Agreement with 15 days written notice.
- Client remains responsible for payment of all work completed, and expenses reasonably incurred, up to the date of termination.
- Vanderven may terminate immediately, without notice, for non-payment or misuse of deliverables.
- Upon termination, Vanderven will deliver completed work product for which payment has been received, in a reasonable timeframe.

- Sections concerning confidentiality, intellectual property, indemnification, and limitation of liability survive termination.

14. Independent Contractor

Vanderven is an independent contractor, not an employee, partner, or agent of Client. Nothing in this Agreement creates a joint venture, partnership, or employment relationship between the parties. Vanderven may use subcontractors to deliver services and remains responsible for their work product under this Agreement.

15. Assignment

Neither party may assign this Agreement without the other's written consent, except that Vanderven may assign it in connection with a sale or reorganization of its business, with notice to Client.

16. Notices

Notices under this Agreement are effective when sent by email to the contact address on file for each party, or by mail to the address provided in the SOW.

17. Dispute Resolution

If a disagreement arises, both parties agree to first attempt to resolve it through direct, good-faith discussion. If that does not resolve the matter within 30 days, either party may pursue mediation before initiating formal legal proceedings.

18. Governing Law

This Agreement is governed by the laws of the Province of British Columbia and the federal laws of Canada applicable therein. The parties attorn to the exclusive jurisdiction of the courts of British Columbia.

19. Severability and Waiver

If any provision of this Agreement is found unenforceable, the remaining provisions continue in full effect. A failure by either party to enforce a provision is not a waiver of the right to enforce it later.

20. Entire Agreement

This Agreement, together with any SOW or Addendum, constitutes the entire agreement between the parties and supersedes all prior discussions. Amendments must be in writing and signed by both parties.

We appreciate the opportunity to work with you, and we take the responsibility of handling your business, your data, and your project seriously. If any part of this Agreement raises a question, reach out before signing so we can talk it through together.

Client Signature: _____ Date: _____

Vanderven Systems Signature: _____ Date: _____